25

ON JANUARY 9, 1957, we once again assembled in the Drill Hall. It was the defense's turn to refute the state's charges. After summarizing the Crown's case against us, Vernon Berrangé, our lead counsel, announced our argument. "The defense," he said, "will strenuously repudiate that the terms of the Freedom Charter are treasonable or criminal. On the contrary, the defense will contend that the ideas and beliefs which are expressed in this charter, although repugnant to the policy of the present government, are such as are shared by the overwhelming majority of mankind of all races and colors, and also by the overwhelming majority of the citizens of this country." In consultation with our attorneys, we had decided that we were not merely going to prove that we were innocent of treason, but that this was a political trial in which the government was persecuting us for taking actions that were morally justified.

But the drama of the opening arguments was succeeded by the tedium of court logistics. The first month of the trial was taken up by the state's submission of evidence. One by one, every paper, pamphlet, document, book, notebook, letter, magazine, and clipping that the police had accumulated in the last three years of searches was produced and numbered; twelve thousand in all. The submissions ranged from the United Nations Declaration of Human Rights to a Russian cookbook. They even submitted the two signs from the Congress of the People: "SOUP WITH MEAT" and "SOUP WITHOUT MEAT."

During the preparatory examination, which was to last for months, we listened day after day as African and Afrikaner detectives read out their notes of ANC meetings, or transcripts of speeches. These recountings were always garbled, and often either nonsensical or downright false. Berrangé later revealed in his deft cross-examination that many of the African detectives were unable to understand or write English, the language in which the speeches were given.

❖